

The Superior Court of the State of Delaware

Petition for Expungement of Adult Record

Petitioner Marcus Elijah Whitfield	
Street Address (including Apt) 412 South Harmony Street	
P.O. Box Number	
City/State/Zip Code Wilmington, DE 19801	
Date of Birth 1978-03-14	Telephone # (302) 555-0147
Attorney Name (if any)	
Interpreter needed? ☐ Yes ☐ No Language	

ATTORNEY GENERAL
☐ New Castle County 820 N. French Street Wilmington, DE 19801
☐ Kent County 102 W. Water Street Dover, DE 19904
☐ Sussex County 114 East Market Street Georgetown, DE 19947

Crim. Case No. 1804009823
Civil Petition No.

Pursuant to 11 *Del. C.* § 4374, Marcus Elijah Whitfield (Petitioner), hereby petitions Superior Court for expungement of the following case(s), and the charge or set of charges related to that case(s), from his or her criminal record. Each charge is listed separately below; any additional charges are listed on Superior Court Form: [CIV EXP 02 B](#).

Case ID # or Criminal Case #	Charge	Offense Date	Disposition Date	Disposition

The following information **MUST** be completed for the Court to consider the petition

☐ The continued existence and possible dissemination of criminal records relating to Petitioner causes, or may cause, circumstances which constitute a manifest injustice to the Petitioner.

You must explain how the Petitioner is negatively affected by the continued existence and possible dissemination of the criminal records (attach additional pages if necessary):

Petitioner requests that this Court enter an Order directing:

- That all law-enforcement agency records and court records relating to the above referenced case(s), and the charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
- That copies of this Court's Order be delivered to the Petitioner, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
- That the Department of Justice and the Courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to the public inspection or disclosure.
- That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged, or convicted in the above reference case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).

The Petitioner hereby declares that the above information is true and correct to the best of his or her ability.

Sworn to and subscribed before me this _____ day of _____ , _____	_____ Petitioner's Signature
_____ Clerk of Court/Notary Public	_____ Date

IN THE SUPERIOR COURT OF THE STATE OF DELAWARE

Petitioner Marcus Elijah Whitfield	Department of Justice	Civil Action No. _____ (Leave Blank – Court will assign) EXPUNGEMENT AFTER PARDON ORDER GRANTED
Street Address (including Apt.) 412 South Harmony Street	☐ New Castle County 820 N. French Street Wilmington, DE 19801	
P.O. Box Number	☐ Kent County 102 W. Water Street Dover, DE 19904	
City/State/Zip Code Wilmington, DE 19801	☐ Sussex County 114 East Market Street Georgetown, DE 19947	
Date of Birth 1978-03-14		
Telephone Number (302) 555-0147		
Attorney Name (if any)		
Interpreter Needed? ☐ Yes ☐ No Language:		

WHEREAS, the Petitioner filed a Petition seeking to have all law-enforcement agency records and court records related to the below case(s), and charge or set of charges related to that case(s), expunged pursuant to 11 *Del. C.* § 4375 (expungement after pardon);

Case ID# or Criminal Case #	Charge	Offense Date	Disposition and Disposition Date	Court

WHEREAS, it appears that the Attorney General was served with the Petition and provided its response to the Petition to the Court; and

WHEREAS, the Court having considered the Petition and the Attorney General's response thereto, finds that the continued existence and possible dissemination of information relating to the referenced case(s), and the charge or set of charges related to that case(s), cause Petitioner or may cause Petitioner circumstances, which constitute manifest injustice to the Petitioner.

NOW THEREFORE, IT IS ORDERED that the Petition be **GRANTED**.

IT IS FURTHER ORDERED,

1. That all law-enforcement agency records and court records relating to the above referenced case(s), and charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
2. That copies of this Court's Order be delivered to the Petitioner or Petitioner's Attorney, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
3. That the Department of Justice and the courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to public inspection or disclosure.
4. That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged or convicted in the above referenced case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).
5. Other: _____

DATE

JUDICIAL OFFICER'S SIGNATURE

IN THE SUPERIOR COURT OF THE STATE OF DELAWARE

FILING COVER SHEET

Petition for Expungement After a Pardon, 11 Del. C. § 4375
Procedure under 11 Del. C. § 4374(c) through (h) and (j)

PETITIONER

Name: Marcus Elijah Whitfield
Date of birth: 1978-03-14
Address: 412 South Harmony Street
City, State, ZIP: Wilmington, DE 19801
Telephone: (302) 555-0147
Criminal case no.: 1804009823

DOCUMENTS IN THIS FILING, IN ORDER

1. CIV_EXP_02_A - Petition for Expungement of Adult Record (updated 6/12/2024).
2. CIV_EXP_08_A - Expungement New Order Granting after Pardon (updated 05/30/2024), proposed order.
3. This cover sheet.

ATTACHED BY THE PETITIONER

Certified criminal history, dated within 45 days.